

CODE OF CRIMINAL PROCEDURE

TITLE 1. CODE OF CRIMINAL PROCEDURE

CHAPTER 5C. PROCEDURES FOR REAL PROPERTY THEFT AND FRAUD

Art. 5C.001. INFORMATION TO BE INCLUDED IN JUDGMENT OR ORDER. For an offense under Section 31.23 or 32.60, Penal Code, the judgment of conviction or order of deferred adjudication must include:

(1) the street address or legal description of the real property that the court finds to be included in the conduct constituting the offense; and

(2) the identifying reference number assigned by the county clerk to each document:

(A) that relates to real property that the court finds to be included in the conduct constituting the offense; and

(B) that is recorded in the real property records of the county.

Added by Acts 2025, 89th Leg., 2nd C.S., Ch. 16 (S.B. 16), Sec. 2, eff. December 4, 2025.

Art. 5C.002. JUDGMENT OR ORDER TO BE FILED WITH COUNTY CLERK. Not later than the 10th day after the date the court enters a judgment of conviction or order of deferred adjudication for an offense under Section 31.23 or 32.60, Penal Code, the prosecutor or court clerk, as determined by local court rule, shall file with the county clerk:

(1) a certified copy of the judgment or order for recording in the real property records of the county where the real property that is the subject of the offense is located;

(2) a statement explaining the filing; and

(3) if the judgment or order does not comply with Article 5C.001, a certified copy of the indictment.

Added by Acts 2025, 89th Leg., 2nd C.S., Ch. 16 (S.B. 16), Sec. 2, eff. December 4, 2025.

Art. 5C.003. EFFECT OF NONCOMPLIANCE. A judgment of conviction or order of deferred adjudication for an offense under

Section 31.23 or 32.60, Penal Code, is not invalid solely because the judgment or order fails to comply with Article 5C.001 or 5C.002. Added by Acts 2025, 89th Leg., 2nd C.S., Ch. 16 (S.B. 16), Sec. 2, eff. December 4, 2025.